attention. This pattern of the Rohingyas being a target of opportunity has been repeated ever since, not least because, unlike the Karen or Shan tribes, they are not armed (indeed, they have deliberately avoided armed revolt after the experience of 1947), making them a safe and easy target for the regime.

The 1974 Constitution of the Socialist Republic of the Union of Burma defined citizenship (in Article 145) as follows: 'All persons born of parents both of whom are nationals of the Socialist Republic of the Union of Burma are citizens of the Union'.[103] This was a critical step because, since the Rohingyas were not formally treated as citizens in 1947, they could not now be citizens of the state. Their National Registration Certificates (from the 1947 legislation) were replaced with Foreign Registration Cards. The next legal step was the 1982 Burmese Citizenship Law, which created four categories of citizenship: citizen; associate citizen; naturalized citizen; and foreigner. Different categories were assigned to ethnic groups on the basis of their residence in Burma before 1824. Anyone not belonging to these categories, specifically the Rohingyas, was deemed to be foreign.

Citizenship, in turn, was redefined as follows:

> Nationals such as the Kachin, Kayah, Karen, Chin, Burman, Mon, Rakhine or Shan and ethnic groups as have settled in any of the territories included within the State as their permanent home from a period anterior to … 1823 A.D. are Burma citizens. The Council of State may decide whether any ethnic group is national or not.[104]

Thus, citizenship was linked to membership of defined ethnic groups that were deemed to have lived in Burma before 1823. This law was important, as it was the first time so much had been made of the question of who lived within the borders of pre-colonial Burma in 1824. As we have discussed in the previous chapter, this is a contentious issue, but the evidence is clear—the Rohingyas formed a substantial part of the population of Arakan both when the Burmese kings conquered the region in the 1780s and when the British annexed it in 1826.

In effect the 1982 law deemed any ethnicity other than those explicitly named to be foreign.[105] Critically, again, the key judgement was one of administrative decision-making, not subject to any legal process. Naturalisation was offered under the following circumstances:

> Persons who have entered and resided in the State anterior to 4th January, 1948, and their offsprings born Within the State may, if they have not yet applied under the union Citizenship